



CONTRADICTIONS

Key conflicting documents and specific acts of perjury by Ramesh Chandran (Plaintiff in O.S. 243/2024; Defendant 2 in O.S. 214/2025).

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Prepared by: Kim Sutton

Client: Anoop Madhavan

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1

D2 pleaded a false trust registration number — the 2024 amendment passed off as the founding deed

RECORD A

O.S. 243/2024 Complaint, Dated 14.08.2024, Para 1 (by D2 as Managing Trustee, on oath): pleads the trust "is a private family trust constituted as per the registered deed No. 17/IV/2024" — swearing that a 2024 amendment is the deed that constituted the trust.

RECORD B

Reply (IA 5/2025), Dated 16.02.2026, Para 3 (D2, on oath): admits the trust "was registered on 04-01-2007 under the Indian Trusts Act, 1882 at the Sub Registrar's Office, Cheppad" — fixing the trust's birth in 2007, not 2024.

CONFLICT: D2 gives the Trust two different births: "constituted as per ... No. 17/IV/2024" in D2's complaint, but "registered on 04-01-2007" in D2's reply. A trust has only one constitution date.

SIGNIFICANCE: A false registration number sworn to the court, passing off the 2024 amendment as the founding deed to defeat the Plaintiff's beneficiary rights.

2

Documents sworn "not available," then produced by D2 himself

RECORD A

Reply (IA 5/2025), Dated 16.02.2026 (D2, on oath). Para 8: "That the Alummoottil Taravad trust started its accounts in Federal Bank ltd; Muttom Branch as current account No.13100200004482 on.26/05/2025. Passbook issued in the above account is produced along with this affidavit." Para 13: "the documents which are demanded by the petitioner in IA.5/2025 is not available for production before the court. Hence I am unable to produce these documents."

RECORD B

Admission-of-documents affidavit, O.S. 214/2025, Dated 18.05.2026 (D2 as Managing Trustee; Malayalam original, English translation). Para 3: produces the Lease Deed of 27/10/2025 with Sree Moolavasam Wellness & Leisure Retreats Pvt. Ltd., the Statement of Account (28/05/2025–15/05/2026) of A/c 13100200004482 at Federal Bank, Muttom, and the Original Minutes Book of the Trust — "have been produced; these are necessary for the just decision of this numbered case."

CONFLICT: On 16.02.2026 D2 swore the demanded documents were "not available" and that he was "unable to produce" them; on 18.05.2026 D2 produced them himself.

SIGNIFICANCE: D2's own production proves the earlier oath false — a deponent who files what he swore was beyond reach cannot be believed on what he still withholds.

3

IA 5/2025 closed on a false "not available" oath — the records then produced after the High Court deadline

RECORD A

HC Order, OP(C)
3278/2025, Dated
15.01.2026: directed the
trial court to dispose IA 2,
5 & 9 of 2025 within three
months — i.e. by about
15.04.2026.

RECORD B

D2's Reply (IA 5/2025),
Dated 16.02.2026: swore
the records were "not
available," on which
footing IA 5/2025 was
closed — "Petition closed
in light of the affidavit"
(Order, Dated 04.03.2026).
D2 then produced the
same records on 18.05.2026
— after the HC deadline.

CONFLICT: The records sworn "not available" to close IA 5/2025 were produced by D2 weeks after the High Court's deadline had passed.

SIGNIFICANCE: The closure rests on an oath D2's own production shows untrue, and the timing defeated the disposal the High Court had ordered.

4

Trust pleaded as active, possessing and managing — yet sworn dormant, with no assets or revenue

RECORD A

O.S. 243/2024 Plaintiff, Dated 14.08.2024, Paras 3-4 (D2 as Managing Trustee): "the administration and management of plaintiff scheduled property and the buildings therein are vested with the plaintiff Trust"; renovation works "going on at the auspices of the plaintiff trust"; "employees deployed by the plaintiff trust".

RECORD B

Reply (IA 5/2025), Dated 16.02.2026, Paras 4-6 (D2, on oath): the trust was "a dormant entity" with "no ... revenue ... whatsoever" that "held no assets/liabilities during this period" — excepting, in the same sentence, the "Settlement of Land and buildings to the trust".

CONFLICT: A trust managing the property, running works and deploying employees cannot be reconciled with the "dormant entity" with "no assets" and "no revenue" the reply swears.

SIGNIFICANCE: D2 refutes his own dormancy oath — both within Para 6 (which excepts the land and buildings) and in his own plaintiff.

5

Undisclosed health-care business operating on the trust premises, hidden from the court

RECORD A

Reply (IA 5/2025), Dated 16.02.2026, Paras 8 & 13 (D2, on oath): for the post-2024 period the only disclosure is a passbook; everything else is "not available".

RECORD B

GST Registration, GSTIN 32ABQCS9416G1Z1 (effective 09.12.2025):
Sreemoolavasam Wellness and Leisure Retreats Private Limited (incorporated 07.08.2025, after the suit) is shown "Active", running residential health-care services from the trust premises — undisclosed activity on the property.

CONFLICT: A company is GST-registered at the trust premises for residential health-care services — hard to reconcile with a trust sworn "dormant" with "no revenue whatsoever".

SIGNIFICANCE: D2 concealed that the trust's property hosts a GST-registered commercial enterprise, inconsistent with the sworn dormancy.

6

Lease of the Cheppad trust property registered at the Marad SRO, outside the jurisdictional registry

RECORD A

Admission affidavit, O.S. 214/2025, Dated 18.05.2026 (D2 as Managing Trustee), Para 3: the 27.10.2025 lease with Sree Moolavasam Wellness & Leisure Retreats Pvt. Ltd. was "registered through the Marad, Alappuzha Sub-Registrar's Office". [as translated; the Marad/Maradu sub-registry location to be verified]

RECORD B

The trust's founding and amendment deeds are registered at the Cheppad SRO, and the High Court directed the Cheppad SRO to furnish the Plaintiff certified copies of the trust documents (WP(C) 31247/2025, Dated 27.08.2025) — the registry of record for the trust and its property.

CONFLICT: A lease of Cheppad trust property was registered at the Marad sub-registry, not the Cheppad SRO where the trust and its property are recorded.

SIGNIFICANCE: Registering a dealing in the property away from its jurisdictional sub-registry requires explanation under s.28 of the Registration Act, 1908.

7

Trust pleaded as "constituted" in 2024, yet pleaded as owning property settled to it in 2022

RECORD A

O.S. 243/2024 Complaint,
Dated 14.08.2024, Para 1:
pleads the trust was
"constituted as per ... No.
17/IV/2024", placing its
creation in 2024.

RECORD B

Same Complaint, Para 2: claims
the trust owns the suit
property under Settlement
Deed No. 1669/I/2022,
Dated 10.11.2022 —
property settled to the
trust in 2022, two years
before the 2024 creation it
pleads.

CONFLICT: The same complaint pleads the trust "constituted" in 2024 (Para 1) yet owning property settled to it in 2022 (Para 2). It cannot own property before it exists.

SIGNIFICANCE: The complaint defeats itself, confirming 17/IV/2024 is a later amendment, not the founding deed.

8

Plaintiff sworn to be "not a beneficiary," contrary to the founding deed and D2's own admission

RECORD A

Reply (IA 5/2025), Dated 16.02.2026, Para 11 (D2, on oath): swears "The plaintiff is not a beneficiary to Alummoottil Taravad Trust. So he is not entitled to file this suit" — denying, on oath, the very status the founding deed confers on the Plaintiff.

RECORD B

Trust Deed No. 2/IV/2007, Dated 04.01.2007, Page 3: the trust is created "for the benefit of the members of the Alummoottil family who are the descendents of Alummoottil Chellamma Channathy"; and D2's own O.S. 243/2024 Plaintiff, Para 4, admits the Plaintiff is "S/o Radhakrishnan Channar" — Chellamma's grandson, a beneficiary on the face of the deed.

CONFLICT: The founding deed makes Chellamma's descendants beneficiaries; D2's own plaintiff admits the Plaintiff is her grandson — yet D2's reply swears the Plaintiff "is not a beneficiary".

SIGNIFICANCE: D2 denies on oath a status fixed by his own deed and admission — a falsehood that also goes to the maintainability of his suit.

9

Paid professional works authorised, yet "no books of account"

RECORD A

Reply (IA 5/2025), Dated 16.02.2026, Para 7(b) (D2, on oath): the 12.02.2020 resolution authorised paid works — "Architects fee, PMC fee, special artisans work charges, consultation fee, legal fees ... electricity charges, Govt tax, fees etc."

RECORD B

Same Reply, Para 5 (D2, on oath): "no books of account were maintained ... no financial statements ... prepared or audited" for the period.

CONFLICT: D2 authorised paid, taxable works (including "Govt tax") by the 12.02.2020 resolution, yet swears "no books of account were maintained".

SIGNIFICANCE: Taxable works with no books expose the trust to tax and accounting scrutiny and breach the mandatory duty to keep accounts (Indian Trusts Act, 1882, s.19).

10

Mandatory duty to keep accounts breached, and resolved away by the board

RECORD A

Trust Deed No. 2/IV/2007, Dated 04.01.2007, Page 4, Clause 2: the Managing Trustee is "bound to maintain all records and accounts of the trust" — a mandatory duty.

RECORD B

Reply (IA 5/2025), Dated 16.02.2026, Paras 5 & 7(b) (D2, on oath): "no books of account were maintained" (2007-2024); and the trustees resolved D3 "is under no obligation to provide the details of any expenditure ... whatsoever".

CONFLICT: The deed binds the Managing Trustee (D2) "to maintain all records and accounts"; yet D2 swears none were kept, and the board resolved D3 need never account.

SIGNIFICANCE: A deliberate, collective refusal to account — breaching the mandatory duty to keep accounts (Indian Trusts Act, 1882, ss.19, 57) and grounding the beneficiary's right to disclosure and to seek the trustee's removal.

11

Construction pleaded as the trust's project, then sworn to be D3's personally funded work

RECORD A

O.S. 243/2024 Complaint, Dated 14.08.2024, Para 4 (D2's suit): the construction was being carried out "at the instance of plaintiff trust" — a trust project.

RECORD B

Reply (IA 5/2025), Dated 16.02.2026, Paras 6 & 7(b) (D2, on oath): the trust was "dormant" and D3 funded the works "from his personal accounts" per the Trustee Resolution dated 12.02.2020 — D3's personal project.

CONFLICT: The pleading shifts between trust-controlled works (plaint) and D3's privately funded works (reply); the same works cannot be both, without accounts and authorisation.

SIGNIFICANCE: Two incompatible sworn accounts of who carried out and funded the works, calling for the accounts and the authorising resolution.

12

Trust twice amended though the founding deed grants no power to amend

RECORD A

Trust Deed No. 2/IV/2007, Dated 04.01.2007 (certified): contains no power for the authors or trustees to amend, vary the beneficiaries, or revoke the trust.

RECORD B

D2's conduct: D2 nonetheless executed Amendment Deeds No. 66/IV/2022 and No. 17/IV/2024, altering the beneficiary class and enlarging trustee powers — without any power to amend and without all beneficiaries' consent.

CONFLICT: The founding deed gives no power to amend, vary beneficiaries or revoke; yet two amendments (66/IV/2022, 17/IV/2024) altered the beneficiary class and trustee powers.

SIGNIFICANCE: Amendments made with no reserved power and without beneficiary consent are open to challenge as void; if 17/IV/2024 is a disguised revocation of rights, s.78 of the Indian Trusts Act, 1882 is also engaged.

13

O.S. 243/2024 cause of action built on an apprehended trespass dated after the Plaintiff had left India

RECORD A

O.S. 243/2024 Plaintiff, Dated 14.08.2024, Para 6 (D2's suit): the cause of action arose on 13.08.2024, on "reliable information" that the Plaintiff was making "hasty preparations to trespass ... again" — an apprehended future act.

RECORD B

Passport (Doc 10, O.S. 214/2025): the Plaintiff entered India on 02.08.2024 and left India on 11.08.2024 (passport exit stamp) — already abroad before the 13.08.2024 date of the apprehended future trespass.

CONFLICT: The plaint apprehends a fresh trespass on 13.08.2024 by a man whom the passport shows left India on 11.08.2024.

SIGNIFICANCE: The pleaded cause of action cannot stand — the Plaintiff had already left India before the apprehended date — leaving the injunction suit resting on an unsupported apprehension.

14

No trustee or trust employee present on 09.08.2024 — supports an inference of a manufactured criminal case

RECORD A

O.S. 243/2024 Plaint, Dated 14.08.2024, Para 4 (D2's suit): the Plaintiff "trespassed" and "brutally manhandled 3 employees deployed by the plaintiff trust" — cast as a spontaneous trespass against the trust's own people.

RECORD B

The defendants' own filings place no trustee or family member at the scene: D5 (Arun B. Unni), the FIR complainant, swears he was "the contractor's ... for the 3rd respondent," with "no connection" to the trust; D6 and D7 likewise deny any connection.

CONFLICT: On 09.08.2024 the only person with any genuine trust connection was the Plaintiff-beneficiary; the men who confronted him and filed FIR 574/2024 swear they had none.

SIGNIFICANCE: No trustee, family member or true trust employee was present — supporting a strong inference of a confrontation manufactured to create a criminal record against the Plaintiff. The High Court has since stayed the Plaintiff's arrest (Crl.M.C. 5800/2025).

15

Plaint and FIR omit the Plaintiff's emergency call and the police attendance

RECORD A

O.S. 243/2024 Plaint, 14.08.2024 (D2's suit): casts 09.08.2024 as a trespass by the Plaintiff; silent on any emergency call or police attendance.

RECORD B

RTI No. 89/RTI/2026 G2 (Police): the Plaintiff's call from 9747612014 came at 10:56 and police attended at 11:15 on 09.08.2024 (GSI Vishal V; CPO Aneez, 7029). FIR 574/2024 logs information "received" only on 10.08.2024 at 16:15.

CONFLICT: Police record the Plaintiff's call and their attendance on the morning of 09.08.2024; the FIR and plaint omit both and rely on the defendants' account logged a day later.

SIGNIFICANCE: The Plaintiff's emergency call is material: it supports his contemporaneous version and was omitted from both the FIR and the plaint.

16

Plaint omits the Plaintiff's complaint, lodged a day before the defendants' FIR

RECORD A

O.S. 243/2024 Plaint,
14.08.2024 (D2's suit):
pleads only the defendants'
version; silent on any
complaint by the Plaintiff.

RECORD B

RTI No. 89/RTI/2026 G2
(Police): the Plaintiff
complained at the station
at 16:20 on 09.08.2024
(receipt
15281021-2024-5-00770).
FIR 574/2024 logs its
information "received"
only at 16:15 on 10.08.2024
— a day later.

CONFLICT: The Plaintiff complained at 16:20 on 09.08.2024; the defendants' FIR was logged 16:15 the next day, yet the suit rests on the FIR and omits the earlier complaint.

SIGNIFICANCE: The plaint relies on the later FIR while omitting the Plaintiff's earlier same-day complaint — a one-sided account.

17

Trust pleads D5 as its employee; D5 swears he was D3's contractor's man, and he filed the FIR

RECORD A

O.S. 243/2024 Complaint, Dated 14.08.2024, Para 4 (D2's suit): the persons at the site were "employees deployed by the plaintiff trust," whom the Plaintiff allegedly "brutally manhandled."

RECORD B

D5's Objection (Arun B. Unni), Dated 18.02.2026, Para 3 (on oath): he was "the contractor's ... for the 3rd respondent" — D3 personally — and had "no connection" with the trust.

CONFLICT: D5's sworn account — "the contractor's" man for D3, with "no connection" to the trust — contradicts the plaintiff's characterisation of him as an employee "deployed by the plaintiff trust"; and D5 filed the FIR.

SIGNIFICANCE: The trust pleads its FIR complainant as its employee though he disowns it on oath, and rests its injunction on that false claim.

"Ongoing construction" pleaded as the injunction's basis, though the building was already finished and inaugurated

RECORD A

O.S. 243/2024 Complaint, Dated 14.08.2024, Paras 3, 5 & 6 (D2's suit): pleads "renovation works ... are going on" and seeks to protect the "ongoing construction" — the very act the injunction is meant to guard.

RECORD B

The renovated Meda was completed by November 2023 and publicly inaugurated on 23.12.2023 (D2-arranged; photographs and video). Press corroborates: Mathrubhumi (05.01.2024) reported the Meda complete; Malayala Manorama (26.06.2024) said it would open to the public on 04.07.2024.

CONFLICT: The "ongoing construction" the plaintiff seeks to protect was, on the record, major restoration already completed and publicly inaugurated in December 2023.

SIGNIFICANCE: The injunction rests on a construction premise the trust's own inauguration disproves, eight months earlier.

19

Public inauguration of the renovated building, held inside the sworn dormancy period

RECORD A

Reply (IA 5/2025), Dated 16.02.2026, Paras 4 & 6 (D2, on oath): the trust had "no ... revenue ... whatsoever" and was a "dormant entity" throughout FY 2007-2024.

RECORD B

Meda Inauguration, 23.12.2023 (email invitation from D4; photographs and video): the trust's renovated Meda was publicly inaugurated (inaugural lamp lit) — an organised event with evident activity, inside the sworn dormancy window.

CONFLICT: A trust sworn "dormant" with "no revenue" through 2007-2024 publicly inaugurated its renovated building in December 2023 — inside that window.

SIGNIFICANCE: A public inauguration and the restoration behind it are inconsistent with the sworn complete dormancy and absence of records.

20

Access-obstruction suit pending in O.S. 84/2024, yet they criminalized the Plaintiff's visit

RECORD A

O.S. 84/2024 (plaint dated 26.12.2023, filed 06.03.2024; the Plaintiff's suit vs D3, D2 & others): alleges they are obstructing his free access and seeks to restrain them; the defendants had appointed counsel before 08.08.2024.

RECORD B

Months later, on 09.08.2024, D2 and D3 (through D5–D7) had FIR 574/2024 registered through D5 against the Plaintiff for visiting the family home, then filed O.S. 243/2024 branding him a trespasser.

CONFLICT: The Plaintiff sued in O.S. 84/2024 to stop the defendants obstructing his access; while that suit was pending and the defendants were represented, they obstructed him anyway on 09.08.2024 and then criminalised the visit.

SIGNIFICANCE: This shows the obstruction was deliberate and pre-existing, not a spontaneous reaction to any trespass — and that the defendants pursued it in defiance of a pending suit, going to their bad faith and supporting the Plaintiff's exclusion claim.

21

Sued to stop rights-defeating registrations; D2 registered 17/IV/2024 eight days later

RECORD A

O.S. 84/2024 Complaint, dated 26.12.2023, filed 06.03.2024 (the Plaintiff's suit): seeks to restrain D3 and D2 from registering documents at SRO Cheppad that would defeat his rights to the family property.

RECORD B

Eight days later, on 14.03.2024, D2 registered the Deed of Amendment 17/IV/2024 — altering the beneficiary class and the Plaintiff's rights — the very instrument the suit sought to prevent.

CONFLICT: O.S. 84/2024 expressly sought to restrain D2 from registering rights-defeating documents at SRO Cheppad; eight days later, on 14.03.2024, D2 registered exactly such an instrument — Amendment 17/IV/2024.

SIGNIFICANCE: Rushing through the very registration the Plaintiff had asked the court to prevent suggests it was done to defeat his rights before the court could act — supporting the challenge to 17/IV/2024 as void and made in bad faith.

22

Plaint and FIR give different headcounts for the same incident — neither account is reliable

RECORD A

O.S. 243/2024 Complaint, Dated 14.08.2024, Para 4 (D2's suit): the Plaintiff allegedly trespassed "along with 5 other men" — six intruders in all.

RECORD B

FIR 574/2024 (lodged by D5, Arun B. Unni, on the same 09.08.2024 incident): records the Plaintiff and only 2 others — three in all. The defendants' two accounts differ by three persons.

CONFLICT: For the single incident of 09.08.2024, D2's complaint pleads six intruders while the defendants' own FIR records three — a difference of three persons within their own accounts.

SIGNIFICANCE: If the defendants' two sworn versions of the same event cannot both be true, neither the FIR nor the complaint is reliable — undermining the factual basis of both O.S. 243/2024 and the criminal case.

23

The injuries support the Plaintiff's account that he was attacked, not the aggressor

RECORD A

O.S. 243/2024 Plaint, Dated 14.08.2024, Para 4 (D2's suit): the Plaintiff "brutally manhandled" three trust employees — casting the Plaintiff as the attacker.

RECORD B

Medical records and Crime 956/2024: the Plaintiff sustained a critically injured shoulder requiring surgery and leaving permanent disability, while the complainant's own wound certificate shows no major injuries.

CONFLICT: The plaint casts the Plaintiff as the aggressor who "brutally manhandled" three employees, yet the only person seriously injured — requiring shoulder surgery and left with permanent disability — is the Plaintiff; the complainant's wound certificate shows no major injury.

SIGNIFICANCE: The medical record fits the Plaintiff being attacked, not being the attacker — undercutting the assault allegation against him and supporting his counter-complaint in Crime 956/2024.

24

Trust sworn dormant and unaccountable, while D2 and his wife (D4) acquired adjoining land

RECORD A

Reply (IA 5/2025), Dated 16.02.2026, Paras 4-6 & 13 (D2, on oath): the trust was "dormant," with "no ... revenue ... whatsoever," and its records "not available for production."

RECORD B

Registered Sale Deeds during the same period: D2 acquired land adjoining the trust, in his own name and in his wife's (D4) name.

CONFLICT: While swearing on oath that the trust was dormant, revenue-less and unable to produce records, D2 and his wife (D4) were acquiring land adjoining the trust.

SIGNIFICANCE: Personal acquisitions next to a trust kept deliberately opaque raise a trustee conflict of interest (Indian Trusts Act, 1882, ss.14, 51) and a question whether the trust's resources or opportunities were used — the deeds, dates and funding to be obtained on discovery.

25

D6 & D7 swear "no connection" to the trust, yet were present controlling a beneficiary's access

RECORD A

D6 & D7's Objection (V. Nandakumar; B. Nadarajan), Dated 18.02.2026, Para 3 (on oath): they deny any "connection" with the trust.

RECORD B

Crime 956/2024 (the Plaintiff's complaint) and the events of 09.08.2024 [evidence pending]: D6 and D7 were present on the trust property and took part in obstructing the Plaintiff-beneficiary's entry to his ancestral home.

CONFLICT: D6 and D7 swear on oath they have "no connection" with the trust, yet they were present on the trust property on 09.08.2024 controlling the Plaintiff-beneficiary's entry to his ancestral home.

SIGNIFICANCE: Either they acted for the trust — making their "no connection" oath false — or strangers were allowed to police a beneficiary's access; either way the defendants must explain by whose authority they acted.

26

A locked door that had to be "kicked open" is inconsistent with an active construction site

RECORD A

FIR 574/2024 / D5's statement (Arun B. Unni): alleges the Plaintiff "kicked open" the door of the Meda to get in.

RECORD B

O.S. 243/2024 Complaint, Dated 14.08.2024, Paras 3-6 (D2's suit): pleads "ongoing construction works" at the Meda around 09.08.2024.

CONFLICT: The defendants' FIR says the Plaintiff had to "kick open" a locked door to enter, while their complaint says construction works were actively ongoing at the same building on the same dates.

SIGNIFICANCE: A sealed, locked building is inconsistent with an active construction site — and since the injunction is premised on protecting "ongoing construction," that contradiction removes its factual basis.

27

Welcomed to the trust's inauguration as family, then pleaded a stranger eight months later

RECORD A

Email invitation from D4 (D2's wife), 23.12.2023: the Plaintiff attended the Meda inauguration and lit the inaugural lamp (photographs and video) — treated as family.

RECORD B

O.S. 243/2024 Complaint, Dated 14.08.2024, Para 4 (just eight months later): the same Plaintiff is pleaded to have "no ... connection with the plaintiff trust" and is branded an outsider and trespasser.

CONFLICT: In December 2023 the Plaintiff was invited by D4 and honoured by lighting the inaugural lamp at the trust's Meda inauguration; eight months later D2's complaint swears he has "no ... connection with the plaintiff trust" and brands him a trespasser.

SIGNIFICANCE: The defendants' own invitation cannot be reconciled with their later sworn "no connection" plea — exposing that plea as a litigation-driven falsehood and corroborating, alongside the 2007 deed, that the Plaintiff is a family beneficiary.